



U.S. Customs and Border Protection

PUBLIC VERSION

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Coalition of American Manufacturers
of Mobile Access Equipment
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RE: Enforce and Protect Act Case Number 8245: Notice of Initiation of Investigation and Interim Measures

Dear Counsel and/or Representatives for the above-referenced Entities:

This letter is to inform you that U.S. Customs and Border Protection (“CBP”) commenced a formal investigation under Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, commonly referred to as the Enforce and Protect Act (“EAPA”), against Zoomlion Heavy Industry, NA Inc (“Zoomlion North America” or the “Importer”). CBP is investigating whether Zoomlion evades antidumping duty (“AD”) order A-570-139¹ and countervailing duty (“CVD”) order C-570-140² (the “Orders”) on certain mobile access equipment and subassemblies thereof (“MAE” or “covered merchandise”) from the People’s Republic of China (“China”). CBP finds that reasonable suspicion exists that Zoomlion entered covered MAE for consumption into the customs territory of the United States through evasion without paying required AD/CVD duties.

¹ See *Certain Mobile Access Equipment and Subassemblies Thereof from the People’s Republic of China*, 87 Fed. Reg. 22,190, dated April 14, 2022 (“AD Order”).

² See *Certain Mobile Access Equipment and Subassemblies Thereof from the People’s Republic of China*, 86 Fed. Reg. 70439, dated December 10, 2021 (“CVD Order”).

As a result, CBP is issuing a Notice of Investigation and imposing the interim measures outlined below.³

I. Period of Investigation

Pursuant to 19 C.F.R. § 165.2, entries covered by an EAPA investigation “are those entries of allegedly covered merchandise made within one year before the receipt of an allegation....” Entry is defined as an “entry, or withdrawal from warehouse for consumption, of merchandise in the customs territory of the United States.”⁴ In the instant case, CBP formally received an EAPA allegation against Zoomlion on October 16, 2025.⁵ Therefore, the entries covered by this period of investigation (“POI”) are those entered for consumption, or withdrawn from warehouse for consumption, from October 16, 2024, through the pendency of this investigation.⁶

II. Background

On October 10, 2025, the Coalition of American Manufacturers of Mobile Access Equipment (the “Coalition” or the “Alleger”) submitted an EAPA allegation⁷ claiming that the U.S. importer Zoomlion is evading the *Orders* on MAE from China. On October 16, 2025, in accordance with 19 C.F.R. § 165.12(a), the Trade Law Enforcement Directorate (“TRLED”), within CBP’s Office of Trade, acknowledged receipt of the Alleger’s properly filed EAPA allegation concerning evasion by the Importer.⁸ The Coalition alleges that available information reasonably suggests that Zoomlion evaded the *Orders* by importing Chinese-origin MAE that was assembled in Mexico and misrepresented the MAE as a product of Mexico. The details of the Allegation are described below.

Initiation, Applicable AD and CVD Orders, and Description of Covered Merchandise

The U.S. Department of Commerce published the *CVD Order* on December 10, 2021, and the *AD Order* on April 14, 2022, describing the covered merchandise as follows:

The merchandise covered by this order consists of certain mobile access equipment, which consists primarily of boom lifts, scissor lifts, and material telehandlers, and subassemblies thereof. Mobile access equipment combines a mobile (self-propelled or towed) chassis, with a lifting device (e.g., scissor arms, boom assemblies) for mechanically lifting persons, tools and/or materials capable of reaching a working height of ten feet or more, and a coupler that provides an attachment point for the lifting device, in addition to other

³ See 19 U.S.C. § 1517(b)(1) (noting that the information provided in the allegation must “reasonably suggest” evasion to initiate an investigation); see also § 1517(e) and 19 C.F.R. § 165.24 (noting that the “reasonable suspicion” standard must be satisfied to implement interim measures).

⁴ See 19 U.S.C. § 1517(a)(4); see also 19 C.F.R. 165.1.

⁵ See email entitled, “EAPA 8245 - Receipt of Allegation,” dated October 16, 2025.

⁶ See 19 C.F.R. § 165.2.

⁷ See submission from the Coalition, dated October 10, 2025 (the “Allegation”). The Coalition is a trade or business association, whose members manufacture, produce, or wholesale MAE (a domestic like product) in the United States, and thus, qualifies as an interested party that is permitted to submit an EAPA allegation pursuant to 19 C.F.R. § 165.1(4). See Allegation at 5.

⁸ See TRLED email, “EAPA 8245 - Receipt of Allegation,” dated October 16, 2025.

components. The scope of this order covers mobile access equipment and subassemblies thereof whether finished or unfinished, whether assembled or unassembled, and whether the equipment contains any additional features that provide for functions beyond the primary lifting function. Furthermore, the scope of the *Orders* also states that:

Processing of finished and unfinished mobile access equipment and subassemblies such as trimming, cutting, grinding, notching, punching, slitting, drilling, welding, joining, bolting, bending, beveling, riveting, minor fabrication, galvanizing, painting, coating, finishing, assembly, or any other processing either in the country of manufacture of the in-scope product or in a third country does not remove the product from the scope. Inclusion of other components not identified as comprising the finished or unfinished mobile access equipment does not remove the product from the scope.⁹

The scope of the *Orders* includes MAE subassemblies, whether assembled or unassembled.¹⁰ These subassemblies include “scissor arm assemblies, . . . boom assemblies, . . . chassis assemblies, . . . {and} boom turntable assemblies”¹¹ Importation of any of these subassemblies, whether assembled or unassembled, constitutes unfinished MAE subject to the *Orders*.¹² These subassemblies or other unassembled parts may appear as “parts of” MAE, categorized under HTSUS 8431.20.0000.¹³ In the investigation, the U.S. Department of Commerce confirmed that Chinese MAE subassemblies are covered merchandise regardless of whether they are imported directly from China or are first assembled into complete MAE in a third country.¹⁴

Description of the Alleged Transshipment Scheme and Supporting Evidence

The Coalition contends that Zoomlion, through its parent company Zoomlion Heavy Industry Science and Technology Co., Ltd. (“Zoomlion”) and its subsidiaries,¹⁵ has evaded the *Orders* on Chinese MAE by importing Chinese MAE subassemblies into Mexico, conducting minor assembly of the subject subassemblies in Mexico, and shipping the assembled MAE to the United States.¹⁶

To support its allegation, the Coalition [

[description of event](#)

].¹⁷ According to the report, which is based on visual observations and firsthand accounts, [[description of production](#)].¹⁸ Reportedly, [

⁹ See *AD Order* at 2193 and the *CVD Order* at 70,442.

¹⁰ See *AD Order* at 22,192; *CVD Order* at 70,442.

¹¹ *Id.*

¹² *Id.*

¹³ See *AD Order* at 22,193; *CVD Order* at 70,442.

¹⁴ See Allegation at Exhibit 2 at 3, 9-10.

¹⁵ See Allegation at 12.

¹⁶ *Id.*

¹⁷ See Allegation at Exhibit 22.

¹⁸ *Id.*

Description of manufacturing

].¹⁹ For instance,

[

Description of production

].²⁰ The

report adds that a [

Description of production process

].²¹

The Coalition also argues that U.S. importers of MAE from China have strong incentives to evade the *Orders* because of the AD/CVD measures and duties in place since 2021.²² In particular, the final *CVD Order* contains rates as high as 448.80 percent,²³ and the final *AD Order* has rates as high as 165.30 percent.²⁴ Of note, as of the date of this decision, the current rates on Zoomlion are 165.14 percent for AD and 12.98 percent for CVD.²⁵ Commerce has not adjusted these rates since the *Orders*' underlying investigation.

These incentives, the Coalition argues, explain changing trade flows of Chinese-origin MAE into the United States.²⁶ The Coalition provided import statistics published by the United States International Trade Commission ("USITC") that illustrate large year-over-year increases in imports of MAE from Mexico, indicating that importers have found paths to avoid duties by the transshipment of Chinese MAE subassemblies through Mexico as reflected in the chart below.²⁷ From 2021 and 2022, imports of MAE from Mexico rose by 125%, then surged to 425% above 2021 levels by 2023, and reached a 634% increase by 2024.²⁸ In absolute terms, Mexico's MAE exports jumped from under \$170 million in 2021 to more than \$1.24 billion in 2024, overtaking China and becoming the dominant source.²⁹ By comparison, MAE imports from China fell by 9% between 2021 and 2022 and were still 2% lower in 2023 than in 2021.³⁰ Although Chinese MAE imports showed month-to-month growth in 2024, they remained well below the volume imported from Mexico.³¹

¹⁹ *Id.*

²⁰ *Id.*

²¹ *Id.*

²² See Allegation at 13.

²³ See Allegation at 13 and *CVD Order* at 70,440-41.

²⁴ *Id.* and *AD Order* at 22,191.

²⁵ *Id.*; *CVD Order* at 70,440-41.

²⁶ See Allegation at 13-16.

²⁷ See Allegation at 14.

²⁸ *Id.*

²⁹ *Id.*

³⁰ *Id.*

³¹ See Allegation at 14 and Exhibit 23.

Sum of Value (USD)	2021	2022	2023	2024
China	387,275,286	354,206,360	377,915,973	463,690,918
Mexico	169,329,233	381,537,154	889,327,346	1,243,158,437

Source: USITC Dataweb, HTSUS statistical reporting numbers 8427.10.8070, 8427.10.8010, 8427.10.8030, 8427.20.8090, 8427.20.8000, 8427.10.8095, 8427.10.8020, 8427.10.8090, and 8427.20.8020.³²

Initiation Assessment

TRLED will initiate an investigation if it determines that “{t}he information provided in the allegation... reasonably suggests that the covered merchandise has been entered for consumption into the customs territory of the United States through evasion.”³³ Evasion is defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the covered merchandise.”³⁴ Thus, the allegation must reasonably suggest not only that the Importer entered merchandise covered by an AD and/or CVD order into the United States, but that such entry was made by a materially false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD/CVD cash deposits or other security.

On November 6, 2025, TRLED found that the information provided in the Coalition’s Allegation reasonably suggested that Zoomlion imported MAE covered by the *Orders* by means of evasion. Specifically, [

Description of conversation

].³⁵ Furthermore, the information in the Allegation stated that [

Description of conversation

] and at the [

Description of process

].³⁶ Based on the evidence the Coalition submitted in support of its allegation – including statistical data and investigative findings - Mexican MAE exports to the United States during the POI are unlikely to have resulted from legitimate MAE production in Mexico.

III. Interim Measures

Not later than 90 calendar days after initiating an investigation under EAPA, CBP will decide based on the record evidence if there is reasonable suspicion that such merchandise covered by the *Orders* was entered into the United States through evasion. CBP need only have sufficient

³² *Id.*

³³ See 19 C.F.R. § 165.15(b); *see also* 19 U.S.C. § 1517(b)(1).

³⁴ See 19 C.F.R. § 165.1; *see also* 19 U.S.C. § 1517(a)(5)(A).

³⁵ See Allegation at 11-12.

³⁶ *Id.*

evidence to support a reasonable suspicion that the importer alleged to be evading entered merchandise covered by an AD and/or CVD order into the customs territory of the United States by a materially false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD and/or CVD cash deposits or other security. If reasonable suspicion exists, CBP will impose interim measures pursuant to 19 U.S.C. § 1517(e) and 19 C.F.R § 165.24. As explained below, CBP is imposing interim measures because, based on the record evidence, there is reasonable suspicion that Zoomlion entered covered merchandise into the customs territory of the United States through evasion.

CBP Form 28 - Requests for Information

On November 17, 2025, CBP issued a CBP Form 28 (“CF-28”) to Zoomlion for the following entry numbers, entered during the POI: [number] 9368, [number] 1413, and [number] 7792.³⁷ The CF-28s requested that Zoomlion produce the following information for each entry:

- Commercial invoices
- Bills of lading
- Purchase orders
- Proof of payment
- Production records.³⁸

In addition, in the CF-28, CBP asked Zoomlion to describe the type of manufacturing occurring at Zoomlion’s facility in Mexico, whether foreign materials are used in its manufacturing process, and to indicate the country of origin for the foreign materials.³⁹ Zoomlion provided its response on January 15, 2026.⁴⁰ In its response, Zoomlion provided most of the documents CBP requested, such as staff attendance records, invoices, BOLs, purchase orders for raw materials and production equipment, raw material requisition records, supplier and importer information, foreign customs import declarations for all imported raw materials, country of origin documentation of each material, machine serial numbers with assembly records, inspection records and the documents it claimed were production records for a total of [#] machines and [#] models ([numbers]).⁴¹

However, the documents labeled as factory production records, along with their corresponding translations, do not constitute actual production records. The documents submitted are titled in Spanish as “reporte diario de equipos”, which more accurately translates to “daily equipment report” or “daily equipment log”, not a production record.⁴² While the English translation provided refers to these documents as “daily production reports”, the content does not reflect factual production data. The records list equipment model and serial numbers, hours of operation, responsible operators with their signatures, and descriptions of issues encountered. They do not

³⁷ See CF-28 issued to Zoomlion Heavy Industry, NA Inc., dated November 17, 2025.

³⁸ *Id.*

³⁹ *Id.*

⁴⁰ See Zoomlion’s letter, “Re: Zoomlion Heavy Industry NA, Inc., Response to CF-28 Requests for Information Related to Entry Nos. [number]9368, [number]1413, and [number]7792,” dated January 15, 2026, at 3-4.

⁴¹ See Zoomlion’s letter, “Re: Zoomlion Heavy Industry NA, Inc., Response to CF-28 Requests for Information Related to Entry Nos. [number]9368, [number]1413, and [number]7792,” dated January 15, 2026, at 2.

⁴² See Zoomlion’s letter, “Re: Zoomlion Heavy Industry NA, Inc., Response to CF-28 Requests for Information Related to Entry Nos. [number]9368, [number]1413, and [number]7792,” dated January 15, 2026.

document production output, quantities produced, or manufacturing results. Accordingly, although these documents were submitted as factory production records in the CF-28 responses, they are in substance equipment usage or activity logs. The translation inaccurately characterizes them as production records.⁴³

In its narrative response to CBP's CF-28 inquiry, Zoomlion provided an overview of its production process documentation using model [number] as a representative example.⁴⁴ Zoomlion stated that there are minimal differences in the production processes across its various aerial work platform models.⁴⁵ For this model, Zoomlion explained the material requisition records and provided a bill of materials (BOM) and BOM list for material delivery, which were signed and confirmed by workers at the Mexico facility.⁴⁶ Zoomlion also submitted production process records, including coating outsourcing records, assembly and debugging records, debugging inspection records and production daily report for an equipment sent to [company name] for coating.⁴⁷ However, the materials provided do not demonstrate an actual manufacturing process or substantiate manufacturing capability. The documents do not reflect discrete production steps, process flow, or transformation of inputs into finished goods. The records largely describe general work content or equipment-related activity without evidence of manufacturing execution.⁴⁸

In addition, Zoomlion submitted assembly and debugging records, and explained that following the coating process, pre-assembly is carried out by employees at the Mexico factory.⁴⁹

Analysis

In assessing the record evidence, CBP finds that based on information submitted by the Coalition, Zoomlion's CF-28 responses, and other internally sourced data placed on the record and/or researched by CBP confirming entries of claimed Mexican origin during the POI for the HTS codes referenced above, there is reasonable suspicion that Zoomlion entered merchandise covered by the *Orders* into the customs territory of the United States through evasion by failing to declare the merchandise as subject to, and subsequently failing to pay, AD/CVD duties on covered merchandise.

Based on the evidence the Coalition submitted in support of its allegation, including statistical data and investigative findings, Mexican MAE exports are unlikely to have resulted from legitimate MAE production in Mexico. As recounted from the allegation above, Zoomlion's facility in Mexico appears to [description of production] to account for the sudden increase in MAE exports of Zoomlion from Mexico to the United States following the imposition of the *Orders*. In fact, according to the Coalition's [

⁴³ *Id.*

⁴⁴ See Zoomlion's letter, "Re: Zoomlion Heavy Industry NA, Inc., Response to CF-28 Requests for Information Related to Entry Nos. [number]9368, [number]1413, and [number]7792," at 8.

⁴⁵ *Id.*

⁴⁶ *Id.*

⁴⁷ See Zoomlion's letter, "Re: Zoomlion Heavy Industry NA, Inc., Response to CF-28 Requests for Information Related to Entry Nos. [number]9368, [number]1413, and [number]7792," at 9.

⁴⁸ *Id.*

⁴⁹ *Id.*

Description of facility], which further fuels the likelihood that Zoomlion is merely assembling MAE subassemblies from China in preparation for exportation to the United States.

The Coalition points to an increase in MAE imports from China to Mexico during the relevant time frame which further indicates that transshipment may be occurring. Since the filing of the AD/CVD cases and imposition of preliminary duties on MAE from China in 2021, Chinese exports to Mexico under related HTS codes increased. Specifically, from 2021 to 2022, Chinese exports to Mexico under the MAE HTS codes increased by 55 percent;⁵⁰ thereby contributing to suspicion that Zoomlion, through its parent company Zoomlion Heavy Industry Science and Technology Co., Ltd. and its subsidiaries, has evaded the *Orders* on Chinese MAE. For example, for entry number [number]9368, the documents provided as production records consist solely of staff attendance records.⁵¹ These records list employee names, production line assignments such as scissor lift, painting line, quality, boom lift, and human resources.⁵² These documents are lists of examination results, covering the period from [period of time].⁵³ The records reflect employee attendance only and do not document the manufacturing or production of mobile access equipment which requires documented transformation of materials into finished, tested, and safety-certified equipment, not merely equipment use logs or workforce activity records as provided in the CF-28 responses.⁵⁴

Notably, Zoomlion's company website indicates that its products span 15 major categories, 81 product series, and 715 models, and that the company is a domestic manufacturer of full-process agricultural machinery with nearly 130 primary models across 11 series, including tractors, wheat harvesters, corn harvesters, rice harvesters, drying equipment, and power platforms for hilly and mountainous terrain.⁵⁵ Despite the company's claims on its website, the information provided in their CF-28 responses does not substantiate these assertions. The submitted materials fail to demonstrate actual manufacturing activity, as the purported production records consist solely of staff attendance documents that resemble inspection reports, explicitly listing examination results and employee attendance rather than production data. The records do not reference production output or describe any manufacturing process, nor do they provide step-by-step documentation showing how the identified models are manufactured. Additionally, the documents labeled as factory production records are daily reports of equipment and do not reflect production activity. The records primarily document operational information such as employee working hours and shifts, model names and numbers, serial numbers, descriptions of issues encountered during operation, and the operators responsible for each shift.⁵⁶ Overall, the responses lack substantive evidence supporting the manufacturing claims presented on the company's website. Therefore, CBP requires further evaluation and eventual verification of these products, which can be accomplished in the context of this investigation, especially in light of the language of the *Orders*, which covers assembled and unassembled subassemblies, and that Chinese MAE subassemblies

⁵⁰ See Allegation at 15, Exhibit 26.

⁵¹ See CF-28 response for Entry# [number]9368.

⁵² *Id.*

⁵³ *Id.*

⁵⁴ *Id.*

⁵⁵ See Zoomlion's website at www.zoomlion.com.

⁵⁶ See CF-28 response for Entry# [number]9368.

are covered merchandise regardless of whether they are imported directly from China or are first assembled into complete MAE in a third country.

In summary, and as noted throughout this memorandum, the information reviewed by TRLED thus far, including importation data, trade trend data, statistical reports, and investigative findings supplied by the Alleger suggests that there is reasonable suspicion that Zoomlion entered Chinese-origin MAE into the United States without paying appropriate duties. Collectively, record evidence necessitates CBP's decision to initiate the current investigation, enact interim measures, and determine whether Zoomlion is evading applicable AD/CVD duties.

IV. Enactment of Interim Measures

Based on the record evidence described above, CBP determines reasonable suspicion exists that Zoomlion entered merchandise covered by AD order A-570-139 and CVD order C-570-140 on MAE from China into the United States without declaring them as subject to the *Orders* and paying the requisite AD/CVD duties. Consequently, there is reasonable suspicion of evasion. Therefore, CBP is imposing interim measures pursuant to this investigation.⁵⁷

Specifically, in accordance with 19 U.S.C. § 1517(e)(1)-(3), CBP shall:

- (1) suspend the liquidation of each unliquidated entry of such covered merchandise that entered on or after November 6, 2025, the date of the initiation of the investigation;
- (2) pursuant to the Commissioner's authority under 19 U.S.C. § 1504(b), extend the period for liquidating each unliquidated entry of such covered merchandise that entered before November 6, 2025, the date of the initiation of the investigation; and
- (3) pursuant to the Commissioner's authority under 19 U.S.C. § 1623, take such additional measures as the Commissioner determines necessary to protect the revenue of the United States, including requiring a single transaction bond or additional security or the posting of a cash deposit with respect to such covered merchandise.⁵⁸

In addition, CBP will require live entry and reject any non-compliant entry summaries, as well as require refile of entries that are within the entry summary rejection period. CBP will also evaluate Zoomlion's continuous bonds to determine their sufficiency. Finally, CBP may pursue additional enforcement actions, as provided by law, consistent with 19 U.S.C. § 1517(h).

For any future submissions or factual information submitted to CBP pursuant to this EAPA investigation, please provide a business confidential version and a public version with a public summary⁵⁹ using the EAPA Case Management System ("CMS"), found at <https://eapallegations.cbp.gov>. All public versions will be accessible to the parties to the

⁵⁷ See 19 U.S.C. § 1517(e); see also 19 C.F.R. § 165.24.

⁵⁸ See also 19 C.F.R. § 165.24(b)(1)(i)-(iii).

⁵⁹ See 19 C.F.R. §§ 165.4, 165.23(c), and 165.26.

investigation via the CMS.⁶⁰ Please note that CBP is requiring that all documents submitted via the CMS are made text searchable, especially if those documents are submitted as PDFs.

Should you have any questions regarding this investigation, please feel free to contact us at Yagmur.Soybakisli@cbp.dhs.gov, Tobias.A.Vandall@cbp.dhs.gov, and eapallegations@cbp.dhs.gov. Please include “EAPA Case Number 8245” in the subject line of your email. Additional information on this investigation, including the applicable statute and regulations, may be found on CBP’s website at: <https://www.cbp.gov/trade/trade-enforcement/tftea/eapa>.

Sincerely,

A handwritten signature in blue ink, appearing to read "Victoria Cho".

Victoria Cho
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

⁶⁰ You will need a login name and password to use the CMS. The website will direct you how to obtain those.